

TENTATIVE RULINGS FOR DEPT. S36 4/23/2026
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kcollierkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DEREK SALKELD,

Plaintiff,

v.

GENERAL MOTORS LLC,

Defendant.

Case No.: CIVSB2508090

**[TENTATIVE] ORDER
GRANTING IN PART AND
DENYING IN PART PLAINTIFF'S
MOTION FOR ATTORNEYS'
FEES, COSTS AND EXPENSES**

I. INTRODUCTION

On March 21, 2025, Plaintiff Derek Salkeld ("Plaintiff") filed a Complaint against Defendant General Motors LLC ("GM" or "Defendant"), based on an alleged defective 2021 Chevrolet Silverado 1500, purchased new in March 2021. (Compl. ¶¶ 6, 9.) Plaintiff's complaint alleges three causes of action relating to violations of Song-Beverly Act.

On October 6, 2025, Plaintiff filed a notice of settlement of the entire case.

On March 13, 2026, Plaintiff filed the current motion for attorneys' fees and costs, and supporting declaration. On March 18, Plaintiff filed a memorandum of costs. On April 15, Defendant filed its opposition, including a supporting declaration. Plaintiff filed his Reply in Support on April 21. After reviewing the written submissions, issuing a tentative ruling, and conducting a hearing on the motion, the Court now issues its final ruling.

II. APPLICABLE LAW

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, they "shall be allowed by the court to recover ... a sum equal to the aggregate amount of costs and

expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).)

"[T]he starting point of every fee award ... must be a calculation of the attorney's services in terms of the time he has expended on the case. Anchoring the analysis to this concept is the only way of approaching the problem that can claim objectivity, a claim which is obviously vital to the prestige of the bar and the courts." (*In re Vitamin Cases* (2003) 110 Cal. App. 4th 1041, 1058, internal citation omitted.) "[T]he award of attorney fees under the Song-Beverly Act, unlike other fee-shifting statutes, is limited to actual hours both expended and determined by the court to be reasonably incurred." (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1112.) "In determining the methodology to be used to award attorney fees under the Song-Beverly Act, the appellate courts have unanimously concluded the lodestar adjustment method of calculating attorney fees is appropriate for two reasons: (1) 'the lodestar adjustment method is based on actual, reasonable attorney time expended as the objective starting point of the analysis,' and (2) 'the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a contrary intent, and no such contrary intent is apparent" (*Ibid.*, quoting to *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 820-21; original italics.) "The lodestar (or touchstone) is produced by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate." (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal. App. 4th 819, 833.)

Although the parties should start with the lodestar method, trial courts have broad authority to determine the amount of a reasonable fee. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1095.) "[R]easonableness of attorney fees is ... to be determined from a

consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.”

(*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615.) “[Parties] are not entitled to compensation for this work merely because it was performed. It [is] their burden to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Baxter v. Bock* (2016) 247 Cal.App.4th 775, 793.)

Competent evidence as to the nature and value of the services rendered must be presented on a motion for attorney’s fees. Detailed time records are not required and an attorney’s testimony alone may suffice. (*Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559.) Nonetheless, where time records are submitted, such are a starting point for the court’s lodestar determination. (*Horsford v. Board of Trustees of Calif State Univ.* (2005) 132 Cal. App. 4th 359, 397.)

The Court can reduce hours that appear unreasonably inflated. (*Chavez v. City of Los Angeles* (2010) 47 Cal.4th 970, 990.) Additionally, inefficient or duplicative efforts are not subject to compensation. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass’n* (2008) 163 Cal.App.4th 550, 556.)

On the other hand, the total fee may be enhanced or adjusted upwards by a multiplier by considering the following factors: (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded

other employment by the attorneys; and (4) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Appellate courts review of a trial court's awards of attorneys' fees is deferential. (*In re Vitamin Cases* (2003) 110 Cal.App.4th 1041, 1051-52.)

III. EXPLANATION OF THE COURT'S RULING

In the current action, the parties agree that Plaintiff is entitled to attorney fees, but dispute the amount. Plaintiff seeks \$22,062.52 in attorneys' fees, which includes \$2,250.00 in fees related to the reply and motion hearing, and \$1,952.91 in costs and expenses. (E. Ryu Decl. ¶ 53.)

A. Attorneys' Fees

1. Plaintiffs' Counsels' Hourly Rates

Mr. Ryu submits the hourly rates of all the billers who worked on the matter as part of the American Lemon Law Group, LLP, as follows:

<i>Name</i>	<i>Title/Position</i>	<i>Year of Bar Admission/Lemon Law Experience</i>	<i>2025/2026 Hourly Rate</i>
Astrid Souto	<i>Junior Associate</i>	2025	\$300
Nicole Basilio	<i>Litigation Paralegal</i>	2021	\$250
Alejandra Pastor	<i>Case Resolution Manager</i>	2021	\$150
Carrie Shumake	<i>Senior Litigation Attorney</i>	2018	\$475
Ezra G. Ryu	<i>Senior Litigation Attorney</i>	2017	\$500
Grace Gonzaludo	<i>Legal Assistant</i>		\$125
Alyssa Ontiveros	<i>Settlement Paralegal</i>		\$250
Franchesca Ann	<i>Legal Assistant</i>		\$125

Carolynne Castillo	<i>Litigation Paralegal</i>	2025	\$200
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(E. Ryu Decl. ¶¶ 44-52, Ex. 7.)

GM argues that Plaintiff's counsels' rates are inflated and should be reduced, but a review of court decisions has found that the hourly rates proposed by Plaintiff are within the range other judges have found reasonable in other similar Song-Beverly fee motions. (*See, e.g.*,¹ *Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019), No. 3:17-cv-0577-AJB-BGS, 2019 U.S. Dist. LEXIS 141480, at *8-9 (finding rates of \$350-\$550/hour to be reasonable); (*Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019), No. 17-CV-0398 W (KSC), 2019 U.S. Dist. LEXIS 89984, at *5-6 (finding rates of \$275-\$550/hour to be reasonable); *Goglin v. BMW of North America, LLC* (2016), 4 Cal. App. 5th 462, 473-74 (finding a rate of \$575 reasonable where BMW argued the case was not complex and provided evidence that counsel for BMW charged much lower hourly rates); *Shaw v. Ford Motor Co.*, (C.D. Cal. Jan. 3, 2020), No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (approving rates between \$200 and \$550); *Canani v. Ford Motor Co.*, No. 2:21-CV-03346-SB-JC, 2022 U.S. Dist. LEXIS 106409, 2022 WL 2102893, at *3 (C.D. Cal. Feb. 14, 2022) (approving rates of \$490 per hour for partner and \$425 and \$435 per hour for associates); *Odadjian v. Jaguar Land Rover N. Am., LLC* (C.D. Cal. Aug. 18, 2022, No. 2:21-cv-09333-SB-GJS) 2022 U.S. Dist. LEXIS 215767, at *5, finding that "a rate of no more than \$500 is reasonable for an attorney with," 15 years of experience.)

¹ Unpublished federal district court decisions are "citable notwithstanding California Rules of Court rule 977, which only bars citation of unpublished California opinions. Therefore, [unpublished federal district court decisions] are citable as persuasive, although not precedential, authority." (*City of Hawthorne ex rel. Wohlner v. H&C Disposal Co.* (2003) 109 Cal.App.4th 1668, 1678, fn. 5 (emphasis in original).)

There are only three attorneys who have billed to this case, namely, Mr. Ryu, who began practicing in 2017, with a billing rate of \$500/hour; Ms. Shumake, who began practicing in 2018, and has a billing rate of \$450/hour; and Ms. Souto, a junior associate with a billing rate of \$300/hour. Based on their years of experience, seniority of their titles, and proportional billing rates, the Court finds the attorney billing rates to be reasonable.

GM also contests paralegal/administrative rates. These professionals are listed with rates of \$125-\$250/hour. “Paralegal and secretarial support services are recoverable in statutory fee awards.” (*Garcia v. Ford Motor Co.* (S.D. Cal. June 12, 2023, No. 22-cv-1474-GPC) 2023 U.S. Dist. LEXIS 102160, at *10; *see also Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (Cal. Ct. App. 1985) 172 Cal. App. 3d 914, 951 (stating “necessary support services for attorneys, e.g., secretarial and paralegal services, are includable within an award of attorney fees”).)

“The Southern District of California has upheld paralegal rates ranging from \$155/hour to \$265/hour in recent ‘lemon law’ cases.” (*Blood v. Mercedes-Benz USA, LLC* (S.D. Cal. Nov. 22, 2024, No. 23-cv-1463-WQH-AHG) 2024 U.S. Dist. LEXIS 213350, at *15.) In *Garcia v. Ford Motor Co.*, *supra*, the District Court confirmed as reasonable “paralegal and legal assistants at rates from \$235 to \$265 per hour.” (*Garcia v. Ford Motor Co.*, *supra*, 2023 U.S. Dist. LEXIS 102160, at *11.) Some courts have approved even higher rates. (*See, e.g., Avila v. Ford Motor Co.* (C.D. Cal. May 15, 2024, No. 5:22-cv-00395-SPG-SHK) 2024 U.S. Dist. LEXIS 119601, at *12 (approving a “Senior Certified Paralegal” rate of \$300/hour) and *White v. FCA US LLC* (N.D. Cal. Sep. 20, 2024, No. 22-cv-00954-BLF) 2024 U.S. Dist. LEXIS 170479, at *15 (approving paralegal rates of \$250 and \$300 per hour.)

As such, the Court find the legal professional billing rates to be reasonable.

2. Plaintiff's Counsel's Charged Hours

In addition to contesting the billing rates, Defendant opposes certain charges as being excessive and unreasonable.

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged.” (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *see also Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 (“The party opposing the fee award can be expected to identify the particular charges it considers objectionable”).)

Defendant argues that many entries are related to the same task, making them both duplicative and then, cumulatively excessive. A review of the invoice submitted by Plaintiff reveals counsel does appear to repeat tasks. First, Mr. Ryu spent 4.2 hours reviewing the case file and creating a case timeline, separating it into two separate entries. The vehicle history prior to filing this lawsuit (attached to Mr. Ryu's declaration as exhibits 1-2) is not extensive and 4.2 hours towards its review and notation seems excessive. As such the Court reduces the number of time allowed for these tasks to 2 hours, resulting in a reduction of \$1000.

Similarly, Mr. Ryu billed 3 hours to drafting an 11-page, formulaic complaint with few details specific to this litigation. As such, the Court removes an hour of time from drafting the complaint, resulting in a reduction of \$500.

In July 2025, Ms. Shumake billed six minutes for every email she wrote or received related to scheduling the mediation, resulting in 14 individual time entries for 0.1 each. This seems excessive. Her time is reduced to 0.5 for these emails, resulting in a reduction of \$427.50.

On February 2, 2026, Mr. Ryu billed one hour to compiling repair orders to use as exhibits for the current motion. These orders were not necessary for this motion; the Court reduces the award by \$500 as a result, for the hour billed for this time.

On February 26, 2026, Mr. Ryu has two different billing entries related to reviewing the case file and drafting the current motion on fees, one for 1.8 hours and 1.4 hours. Given their duplicative nature, the Court removes the entry for 1.4 hours, resulting in a reduction of \$700.

Further, Plaintiff seeks to bill for several clerical tasks, which do not seem necessary or reasonably incurred. “Clerical tasks are generally not recoverable.” (*Kohan v. LUCID Grp. USA, Inc.* (N.D. Cal. Dec. 18, 2025, No. 3:24-cv-02030-JSC) 2025 U.S. Dist. LEXIS 262171, at *14.) “Calendaring, internal filing, and scanning are some examples of tasks that are purely clerical and either non-compensable or compensable at a reduced billing rate.” (*Solace Glob., Inc. v. Mercedes-Benz USA, LLC* (C.D. Cal. Dec. 16, 2025, No. 2:25-cv-00119-ODW (AGRx)) 2025 U.S. Dist. LEXIS 269219, at *10.)

As such, the Court disallows reimbursement for the following entries:

- 02/19/25 Nicole Basilio - \$50.00 - Uploaded cert receipt for prelit letter
- 10/07/25 Alejandra Pastor - \$15.00 - searched for OSC date
- 10/08/25 Alejandra Pastor - \$15.00 - Saved fully executed SAR
- 10/13/25 Alejandra Pastor - \$15.00 - Calendared OSC date and updated settlement terms.
- 10/14/25 Alejandra Pastor - \$15.00 - calendared vehicle surrender
- 10/30/25 Alejandra Pastor - \$15.00 - created Fed ex label
- 12/17/25 Nicole Basilio - \$25.00 - docket check
- 12/23/25 Alejandra Pastor - \$15.00 - Saved conformed copy of NOS

(E. Ryu Decl. Ex. 7.) Removing these entries would result in a reduction of \$165.00.

Lastly, Defendant argues that Plaintiff's charges for work related to the current fees motion are excessive, including the fees anticipated for the reply and upcoming hearing. Some do appear to be. For example, on March 11, paralegal Carolyn Castillo billed 2.1 hours for compiling "all of the emails in chronological order for fee motion." (E. Ryu Decl. Ex. 7 at 6.) This task seems wholly unnecessary to the current motion, and is not "reasonably incurred," in prosecution of this case. (Civ. Code, § 1794, subd. (d).) Further, Mr. Ryu seeks \$2,250 (or 4.5 hours) for "anticipated" charges related to the upcoming hearing and reply. Both seem excessive, so the Court reduces the award by \$1170, removing Ms. Castillo's 2.1 hours and 1.5 hours of Mr. Ryu's "anticipated" time.

Otherwise all of Plaintiffs' counsel's billing entries seem reasonable, and the Court is awarding them as is.

B. Plaintiffs' Costs

Plaintiff seeks \$1,952.91 in costs and expenses, all of which are accounted for in a Memorandum of Costs, which was filed March 18. Service is not contested by Defendant. Pursuant to California Rule of Court, Rule 3.1700, subdivision (b)(1), costs are to be challenged via motion to strike or tax costs, which must be served and filed 15 days after the costs memo is served. (Cal. R. Court, rule 3.1700(b)(1).) No motion to tax costs has been filed by Defendant, so this Court is awarding Plaintiffs' costs in full.

IV. CONCLUSION

The motion is GRANTED IN PART and DENIED IN PART. The Court awards a total of \$19,552.93 in attorneys' fees and costs, based on an award of:

1. \$17,600.02 in attorneys' fees (reduced from \$22,062.52); and
2. \$1,952.91 in costs.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

Tentative -- NOT FINAL

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

DAKOTA JACOB SALAS,

Plaintiff,

v.

DALBIR SINGH,

Defendant.

Case No.: CIVSB2509087

**[TENTATIVE] ORDER
(1) OVERRULING DEFENDANT’S
DEMURRER TO THE SECOND
AMENDED COMPLAINT; AND (2)
DENYING DEFENDANT’S
MOTION TO STRIKE**

V. INTRODUCTION

A. The Complaint and Allegations

This is a personal injury action. On April 1, 2025, Plaintiff Dakota Jacob Salas initiated this action against Defendant Dalbir Singh. Plaintiff’s original Complaint was on Judicial Council form pleadings alleging claims for motor vehicle and general negligence. Plaintiff’s First Amended Complaint (FAC) alleged one cause of action for motor vehicle negligence.

The operative Second Amended Complaint (SAC) filed February 11, 2026, alleges three causes of action for motor vehicle negligence, assault, and intentional infliction of emotional distress (IIED).

Plaintiff alleges that on November 19, 2024, at or near the I-15 northbound near Cleghorn Road in San Bernardino, Plaintiff slowed his vehicle on the freeway as traffic came to a stop in front of him; then, Defendant struck him from behind. Defendant attempted to flee the scene, then deliberately swerved his vehicle towards Plaintiff’s vehicle with such speed and proximity that Plaintiff believed a second collision was imminent and unavoidable. Plaintiff was forced to brake hard and steer defensively, which triggered acute stress and neck and back pain.

B. Pending Motions

Now before the court are Defendant Singh's demurrer to the SAC and a separate motion to strike certain allegations in the SAC. Plaintiff opposes and Singh replies, as to both motions. After issuing a tentative ruling and conducting a hearing on the motions, the Court now issues its final ruling.

VI. REQUESTS FOR JUDICIAL NOTICE

As to both the demurrer and the motion to strike Defendant requests judicial notice of four court documents associated with this action pursuant to Evidence Code section 452, subdivision (d), which permits courts to take judicial notice of records of any court of this state. With respect to judicially noticing court documents, "the truth of a document's contents will not be considered unless it is a judgment, statement of decision, or order." (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1103.) Thus, a court may judicially notice the existence of pleadings filed in the action, but not the truth of allegations therein. Here, Defendant seeks judicial notice of Plaintiff's Complaint, FAC, and SAC, along with the court's January 21, 2026, order granting motion to strike. The request is granted as to all of the documents in question.

VII. WHY THE COURT IS OVERRULING THE DEMURRER

Defendant demurs to the second cause of action for assault and third cause of action for IIED on grounds they are uncertain and fail to state facts sufficient to constitute a cause of action.

A. Sham Pleading Doctrine

Defendant contends the SAC is a sham pleading because in the original Complaint and FAC, Plaintiff alleged Defendant's conduct was negligent or reckless. Now in the SAC, Plaintiff alleges Defendant acted with intent to harm him through apprehension of a battery and with intent to cause severe emotional distress, and that Plaintiff suffered severe emotional distress.

Defendant points out that the FAC alleged that Defendant “swerved his vehicle in Plaintiff’s direction, in an apparent effort to intimidate Plaintiff. Plaintiff then stopped his vehicle and called the police.” (FAC, ¶ 4.) Defendant argues this allegation is omitted from the SAC because it is an admission that Defendant did not have the requisite intent for assault or IIED. Also, Plaintiff used the word “apparent,” to which Defendant ascribes significant meaning, contending it indicates an admission that Plaintiff suffered no further injury or distress.

Defendant further contends that the word “apparent” means Plaintiff admitted in the Complaint and FAC that Defendant’s intent was not to cause contact between the two vehicles and that Plaintiff was not placed in imminent apprehension of contact. Therefore, Defendant concludes the SAC is a sham pleading because Plaintiff makes inconsistent allegations to evade the court’s 1/21/26 Order striking the punitive damages allegations.

Defendant’s sham pleading argument fails. The Court does not assign the weight and significance of the “apparent” that the defense does. One of the elements necessary to plead and prove tortious assault is that it reasonably appeared to plaintiff that defendant was about to carry out the threat. (Judicial Council of California Advisory Committee on Civil Jury Instructions (CACI) No. 1301 (emphasis added).) When standard dictionary definitions of the words “appear” and “apparent” are considered, they support an interpretation directly contrary to what Defendant urges.

For example, “apparent” means readily seen, exposed to sight, open to view, visible; capable of being easily perceived or understood; plain or clear; obvious. (Dictionary.com, <https://www.dictionary.com/browse/apparent>, accessed 4/24/26.) “Appear” means to come into sight, become visible; to be obvious or easily perceived; be clear or made clear by evidence. (Dictionary.com, <https://www.dictionary.com/browse/appear>, accessed 4/24/26.) Thus,

Plaintiff's use of the word "apparent" in the FAC is consistent with his later allegations in the SAC alleging that Defendant assaulted him, because one of the elements for an assault claim is that it appeared that a defendant was about to carry out a threat.

In the SAC, Plaintiff alleges Defendant deliberately swerved his vehicle directly into Plaintiff's lane at speed and crossed into Plaintiff's immediate trajectory with such speed and proximity that Plaintiff reasonably believed an imminent second collision was unavoidable. (SAC, ¶ 5.) This allegation adequately pleads the reasonable appearance element needed to state a claim for tortious assault. (CACI No. 1301.) Moreover, it is not inconsistent with the FAC allegation that Defendant swerved his vehicle in Plaintiff's direction in an apparent attempt to intimidate him. (FAC, ¶ 4.) Instead, the two allegations are logically and factually consistent, whether the Defendant's goal was intimidation or threatening a second collision; it is feasible and plausible that Defendant's action was motivated by both objectives.

B. Second Cause of Action — Assault

In demurring specifically to the second cause of action for assault, Defendant repeats the arguments he advanced for the unsuccessful sham pleading argument. Specifically, Defendant argues that Plaintiff did not allege that a person would reasonably believe there was about to be imminent contact between the two vehicles and that Plaintiff alleged in the FAC that Defendant apparently was attempting to intimidate Plaintiff. As described above, these arguments lack merit.

C. Third Cause of Action – Intentional Infliction of Emotional Distress (IIED)

To prevail on an IIED tort claim, a plaintiff must plead and prove that: 1) defendant's conduct was outrageous; 2) defendant intended to cause plaintiff emotional distress or defendant acted with reckless disregard of the probability that plaintiff would suffer emotional distress, knowing that plaintiff was present when the conduct occurred; 3) plaintiff suffered severe

emotional distress; 4) defendant's conduct was a substantial factor in causing plaintiff's severe emotional distress. (CACI No. 1600.)

First, Defendant argues the alleged conduct was not extreme or outrageous because Plaintiff alleged Singh acted negligently and in reckless disobedience of traffic laws by fleeing the scene and swerving towards Plaintiff to intimidate him. This argument mischaracterizes the SAC's new allegations that Defendant deliberately swerved his vehicle off the shoulder and directly into Plaintiff's lane at speed and crossed into Plaintiff's trajectory with such speed and proximity that Plaintiff reasonably believed an imminent second collision was unavoidable. (SAC, ¶ 5.)

These factual allegations go beyond fleeing the scene and intimidation; they describe conduct by the Defendant that supports the allegation that Plaintiff reasonably believed another collision would occur – after all, it is clear from the context that both parties were still driving their vehicles on the freeway in traffic with other vehicles around them. The reasonable inference is that Plaintiff's ability to maneuver out of the way of Defendant's vehicle was severely limited by the presence of other vehicles. Creating such an environment on an already busy highway could be viewed as extreme conduct that exceeds all bounds of that usually tolerated in a civilized community. (*Ricard v. Pacific Indemnity Co.* (1982) 132 Cal.App.3d 886, 895.)

Next, Defendant argues that fleeing the scene is not conduct that is directed primarily at Plaintiff. Conduct being directed primarily at the plaintiff is not an element needed to state an IIED claim. Moreover, the SAC allegations make it clear that the conduct supporting the IIED claim was not Defendant's act of fleeing the scene. Instead, it was Defendant's act of using his vehicle in an inherently dangerous and threatening manner by jerking his steering wheel,

deliberately swerving off the shoulder directly into Plaintiff's lane at speed, and crossing into Plaintiff's immediate trajectory with speed and proximity. (SAC, ¶¶ 5, 24.)

VIII. WHY THE COURT IS DENYING THE MOTION TO STRIKE

Defendant moves to strike various portions of the SAC alleging claims for punitive or exemplary damages, specifically the following pages or paragraphs: page 5, ¶ 19, lines 16-19; page 6, ¶ 20, lines 6-7; page 6, ¶ 22, line 12; page 7, lines 1-2; page 7, ¶ 28, line 3; page 7, ¶ 29, lines 4-6; page 7, ¶ 30, lines 7-11; page 7, ¶ 31, lines 12-13, page 7, lines 26-27. Defendant contends the identified portions are irrelevant, false, or improper.

First, Defendant argues that if its demurrers to the assault and IIED claims are sustained, then the motion to strike must be granted because Plaintiff only seeks punitive damages in connection with those claims. But since the Court is overruling the demurrers to the assault and IIED claims, this argument fails.

Second, Defendant argues the SAC is a sham pleading designed to evade the court's prior ruling in January 2026 striking the punitive damages from the FAC. As explained above in Section III.A., this argument also fails.

Third, Defendant argues that under the assault and IIED claims, Plaintiff alleges Defendant acted negligently and recklessly by fleeing the scene and swerving towards Plaintiff to intimidate him. According to Defendant, fleeing the scene is not conduct directed at Plaintiff and there are no allegations that fleeing the scene caused Plaintiff injury or severe emotional distress.

This argument mischaracterizes and misstates the plain allegations under the assault and IIED claims where Plaintiff does not allege negligence or recklessness. Instead, Plaintiff alleges that Defendant consciously and deliberately engaged in despicable conduct with a willful and knowing disregard for the rights and safety of others; Defendant intentionally refused to stop and

render aid or exchange information; Defendant intentionally turned and swerved his moving vehicle toward Plaintiff's vehicle at close range. (SAC, ¶¶ 19, 19.b, 19.c.)

IX. CONCLUSION

3. Defendant's demurrers to the SAC are respectfully OVERRULED.

4. Defendant's motion to strike punitive and exemplary damages allegations from the SAC is respectfully DENIED.

IT IS SO ORDERED.

Dated: _____

DRAFT – NOT FINAL
Hon. Joseph B. Widman
Judge of the Superior Court